

ORDER SHEET
IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

Crl. Misc. No.1776-HB/2019

Mst. Bushra

VS.

District Police Officer, etc.

S.No. of order/ proceeding	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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29.03.2019. Rana Muhammad Sarfraz Shaukat, Advocate with
petitioner.
Mr. Tajammal Hussain Awan, Advocate for respondent
No.3.
Respondent No.3 in person.
Mr. Hassan Mehmood Khan Tareen, Deputy Prosecutor
General with Haq Nawaz SI/S.H.O.

Minor detinue, namely, Muhammad Hassan alias
Abdul Rehman (aged about 2 years), has been produced before
the Court by respondent No.3 namely Muhammad Asif Hanif,
his father.

2. This petition has been filed by the petitioner regarding
the alleged illegal and improper detention of her minor son
named above by the respondent No.3. The petitioner is the real
mother of the minor and keeping in view the age of the minor
the first right of *hazanat* regarding custody of minor lies with
the petitioner. As per contents of this petition, the minor was
snatched from the custody of the petitioner by the respondent
No.3 on 01.02.2019. The petitioner has also appended her
affidavit alongwith the present petition regarding the correctness
of the contents of this petition. No counter affidavit has been
filed by Muhammad Asif Hanif respondent No.3 so as to
challenge the contents of the affidavit. Marriage between the
parties is still intact which, prima facie, shows that there is
nothing adverse against the petitioner to deprive her from the
custody of her minor children. The petitioner is living with her
parents. Learned counsel for the respondent No.3 has submitted

that appropriate proceedings were initiated before the learned Guardian court and as the matter is pending before the learned Guardian court, therefore, the question regarding custody and welfare of minor should be left to be determined by the court of competent jurisdiction after a fair trial and evidentiary hearing to enable the parties to put all requisite material before the court. He further submitted that an informed decision can be made by the learned Guardian court regarding the welfare and custody of the minor. It is true that a Guardian court is the final arbitrator to adjudicate upon the question of custody of a child but this does not mean that where a parent is holding custody of a minor lawfully and is deprived of such custody, such parent cannot seek remedy to regain the custody while the matter is *sub judice* before a Guardian court. This Court, in exercise of its power under Section 491 Cr.P.C., has to exercise parental jurisdiction and is not precluded, in any circumstance, from giving due consideration to the welfare of the minor and to ensure that no harm or damage comes to him physically or emotionally by reason of breakdown of family tie between the parents. Reliance is placed on the case of Mirjam Aberras Lehdeaho v. S.H.O., Police Station Chung, Lahore and others (2018 SCMR 427).

3. In light of the above discussion, the instant petition is allowed and the custody of minor namely Muhammad Hassan alias Abdul Rehman (aged about 2 years), is ordered to be handed over to the petitioner. It has already been brought in the notice of the court that the application under section 25 of the Guardian & Wards Act, 1890 is pending before the learned Judge Guardian Court, so it is further directed that the petitioner shall facilitate the respondent No.3 to meet with the minor and shall produce the minor before learned Judge Guardian Court as and when directed by the said court. It is also made clear that although respondent No.3 is permitted to meet his minor son, however, he will not take him out with him from the premises of

the Guardian Court concerned. It is also made clear that the petition pending before the court of the learned Judge Guardian Court shall be decided on its own merits without being influenced by any observation made in this order.

(Sadiq Mahmud Khurram)
Judge

Raheel

Approved for Reporting.

Judge.